

24TRCV02598 24TRCV02598

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Case Number: 24TRCV02598 Hearing Date: August 20, 2026 Dept: B

Moving Parties: Defendant General Motors,
LLC

Responding

Party: None

Motion

for Summary Judgment or Summary Adjudication

The Court considered the moving papers. No opposition was filed.

RULING

See below.

BACKGROUND

On August

5, 2024, plaintiff Deven Amyia Robinson filed a complaint against General Motors, LLC for (1) violation of Civil

Code §1793.2(d), (2) violation of Civil Code §1793.2(b), (3) violation of Civil Code §1793.2(a)(3), and (4) violation of breach of the implied warranty of merchantability as to a 2021 Chevrolet Trax.

LEGAL

AUTHORITY

The purpose of a motion for summary judgment or summary

adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”

Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal. 4th 826, 843. “Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.

“On a

motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519. A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2).

“To

meet its burden of proof, a ‘plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.’”

Peralta v. The Vons Companies, Inc. (2018) 24 Cal. App. 5th 1030, 1035 (citation omitted).

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn

from that evidence, in the light most favorable to the party opposing summary judgment.” *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467; CCP §437c(c).

DISCUSSION

Defendant General

Motors, LLC requests summary judgment in its favor and against plaintiff on the ground that no triable issue of material fact exists and defendant is entitled to summary judgment as a matter of law.

Alternatively, defendant requests summary adjudication as to each of the causes of action.

The complaint alleges

that on May 4, 2021, plaintiff entered into a warranty contract with defendant GM regarding a 2021 Chevrolet Trax.

Complaint, ¶6. The warranty contract contained various warranties, including bumper-bumper warranty, powertrain warranty, and emission warranty.

Id., ¶7. Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including transmission defects and electrical defects. Id., ¶11. Said defects/nonconformities substantially impair the use, value, or safety of the vehicle. Id., ¶12. The values of the subject vehicle is worthless. Id., ¶13. Defendant GM has failed to either promptly replace the subject vehicle or to promptly make restitution in accordance with the Song-Beverly Act. Id., ¶15.

First cause of action

for violation of Civil Code §1793.2(d)

Civil Code §1793.2(d) states, “(2) If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). . . .”

“[T]he only affirmative step the Act imposes on

consumers is to 'permit the manufacturer a reasonable opportunity to repair the vehicle.'" *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal. App. 4th 1094, 1103 (citation omitted). "The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle 'after a reasonable number of attempts.' 'Attempts' is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle." *Silvio v. Ford Motor Co.* (2003) 109 Cal. App. 4th 1205, 1208.

Defendant presents evidence that after purchasing the Trax in May 2021, plaintiff presented the subject vehicle to a GM-authorized facility for a single repair under warranty during five years of ownership. The subject vehicle had only one visit to a GM-authorized dealership for repairs under warranty on July 3, 2023 for a battery replacement, with the only other visit happening on August 24, 2021, for Chevrolet Factory Maintenance.

See Bryan Jensen decl., Exhs. C ("View Vehicle Summary") and D ("View Vehicle Transaction History Detail").

See also defendant's Separate Statement of Undisputed Material Facts ("DUMF") 5.

Defendant contends that Song-Beverly applies only to defects that remain unresolved after a reasonable number of repair attempts or that substantially impair the vehicle's use, value or safety. See CCP §1793.2, CACI 3201, 3204 ("substantially impaired").

Defendant asserts that plaintiff does not have any evidence showing that GM failed to satisfy its repair obligations under the warranty as plaintiff presented the vehicle to a GM-authorized dealership only once for a repair under warranty, with the only other visit being routine factory maintenance during five years of ownership.

Defendant contends that plaintiff did not report any other concerns during that visit and there is no evidence of any other presentations to a GM-authorized dealership after the warranty repair on July 3, 2023. Thus, defendant argues, plaintiff's claims fail because plaintiff cannot demonstrate that the subject vehicle suffered from ongoing defects that GM failed to resolve.

There is no opposition.

The Court finds that defendant met its burden of showing that plaintiff cannot establish the elements, namely, "reasonable number of attempts." The service history shows that the vehicle was presented only one time for a warranty repair. There is no opposition, and thus, plaintiff fails to raise a triable issue of material fact.

Second cause of action for violation of Civil Code §1793.2(b)

Civil Code §1793.2(b) states, "[w]here those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. . . ."

See above as to defendant's argument and evidence.

There is no opposition.

The Court finds that defendant met its burden of showing that plaintiff cannot establish the elements. Defendant presented evidence that plaintiff presented the vehicle for repair on July 3, 2023, and the battery was replaced that day. The burden thus shifts to plaintiff to raise a triable issue of material fact, which plaintiff has failed to do.

Third cause of action for violation of Civil Code §1793.2(a)

Civil Code §1793.2(a) states, "[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . (3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

See above as to defendant's evidence.

There is no opposition.

The Court finds that defendant has met its burden of showing that plaintiff cannot establish the elements as the only warranty repair was for a battery replacement, and the records indicate that it was completed. There is no opposition. Plaintiff has not raised a triable issue of material fact.

Fourth cause of action for breach of implied warranty of merchantability

Civil Code §1792

states: "Unless disclaimed in the manner prescribed by this chapter, every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable. . . ." "Merchantability, for purposes of the Song-Beverly Act, means that the consumer goods: '(1) Pass without objection in the trade under the contract description. (2) Are fit for the ordinary purposes for which such goods are used. (3) Are adequately contained, packaged, and labeled. (4) Conform to the promises or affirmations of fact made on the container or label.' 'The core test of merchantability is fitness for the ordinary purpose for which such goods are used.' Such fitness is shown if the product 'is in safe condition and substantially free of defects.'" *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal. App. 4th 1297, 1303 (citations and internal quotations omitted).

Defendant argues that the subject vehicle was merchantable as plaintiff brought the vehicle to an authorized repair facility only once for a battery replacement and made no other complaints. Defendant has not met its burden of providing affirmative evidence that plaintiff cannot establish that the vehicle was not fit for its ordinary purpose. "[A] moving defendant now has two means by which to shift the burden of proof under . . . [CCP] section 437c to the plaintiff to produce evidence creating a triable issue of fact. The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. Alternatively, the defendant may utilize the tried and true technique of negating ('disproving') an essential element of the

plaintiff's cause of action." Brantley

v. Pisaro (1996) 42 Cal.App.4th 1591, 1598 (citations omitted). Defendant has done neither. Reliance on the vehicle repair history alone

is insufficient because a vehicle may still not be fit for its ordinary purpose

even if it was never taken to the dealership for a repair. Defendant has not presented affirmative

evidence showing, for example, that the vehicle was in a safe condition, was

substantially free of defects, or operated as intended, nor has defendant

presented affirmative evidence showing that plaintiff cannot prove otherwise.

Defendant has failed to

shift the burden to plaintiff on this cause of action.

ORDER

The motion for summary

judgment is DENIED. The motion for

summary adjudication is GRANTED as to the first, second, and third causes of

action and DENIED as to the fourth cause of action.

Defendant is ordered to

give notice of ruling.